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March 6, 2025

By: Stewart

An Act relating to the State Architectural and Licensed Interior Designers Act; amending 59 O.S. 2021, Section 46.21b, as amended by Section 16, Chapter 138, O.S.L. 2024 (59 O.S. Supp. 2024, Section 46.21b), which relates to building types subject to act; modifying certain construction value; updating statutory language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 46.21b, as amended by Section 16, Chapter 138, O.S.L. 2024 (59 O.S. Supp. 2024, Section 46.21b), is amended to read as follows:

Section 46.21b. A. An architect shall be required to plan, design, and prepare plans and specifications for the following Code Use Groups except where specifically exempt from the provisions of the State Architectural and Licensed Interior Designers Act. All Code Use Groups in this section are defined by the current International Building Code.

B. The construction, addition, or alteration of a building of any size or occupancy in the following Code Use Groups shall be

1 subject to the provisions of the State Architectural and Licensed
2 Interior Designers Act:

- 3 1. Code Use Group I - Institutional;
- 4 2. Code Use Group R-2 - Residential, limited to dormitories,
5 fraternities and sororities, and monasteries and convents;
- 6 3. Code Use Group A-1 - Assembly and theaters;
- 7 4. Code Use Group A-4 - Assembly, arenas and courts;
- 8 5. Code Use Group A-5 - Assembly, bleachers and grandstands;
- 9 6. Code Use Group H - High hazard; and
- 10 7. Buildings for which the designated Code Use Group changes
11 are not exempt from the State Architectural and Licensed Interior
12 Designers Act.

13 C. The following shall be exempt from the provisions of the
14 State Architectural and Licensed Interior Designers Act; provided
15 that, for the purposes of this subsection, a basement is not to be
16 counted as a story for the purpose of counting stories of a building
17 for height regulations:

- 18 1. The construction, addition, or alteration of a building no
19 more than two stories in height and with a code-defined occupancy of
20 no more than fifty (50) persons for the Code Use Groups A-2 and A-3
21 - Assembly and Code Use Group E - Education;
- 22 2. The construction, addition, or alteration of a building no
23 more than two stories in height and no more than sixty-four
24

1 transient lodging units per building for the Code Use Group R1 -
2 Residential, including, but not limited to, hotels and motels;

3 3. The construction, addition, or alteration of a building no
4 more than two stories in height and with a gross square footage not
5 exceeding one hundred thousand (100,000) in the Code Use Group B -
6 Business;

7 4. The construction, addition, or alteration of a building no
8 more than two stories in height and with a gross square footage not
9 exceeding two hundred thousand (200,000) in the Code Use Group M -
10 Mercantile; and

11 5. The construction, addition, or alteration of a building no
12 more than two stories in height in the following Code Use Groups or
13 buildings:

- 14 a. Code Use Group U - Utility,
- 15 b. Code Use Group F - Factory and Industrial,
- 16 c. Code Use Group S - Storage,
- 17 d. Code Use Group R2 - Residential, including apartments
18 containing no more than thirty-two dwelling units or
19 thirty-two guest units per building,
- 20 e. Code Use Groups R3 and R4 - Residential,
- 21 f. all buildings used by a municipality, county, state,
22 public trust, public agency, or the federal government
23 with a construction value under ~~One Hundred Fifty-~~
24

1 ~~eight Thousand Dollars (\$158,000.00)~~ Three Hundred
2 Thousand Dollars (\$300,000.00),

3 g. incidental buildings or appurtenances associated with
4 paragraphs 1 through 5 of this subsection, and

5 h. all uninhabitable, privately owned agricultural
6 buildings.

7 D. The addition, renovation, or alteration of buildings where
8 the use was exempt as new construction shall remain exempt if the
9 Code Use Group does not change.

10 E. Upgrades, repairs, replacements, and changes made on
11 projects in Code Use Groups found in this title requiring an
12 architect are exempt from hiring an architect if the upgrades,
13 repairs, replacements, or changes do not affect the existing primary
14 structural, mechanical, or electrical systems, life safety systems,
15 fire codes, or exit passageways ~~and/or~~ or egress as determined by
16 the applicable building official having jurisdiction.

17 F. Nonstructural interior construction projects in Code Use
18 Groups requiring an architect are exempt from hiring an architect if
19 the services are performed by a licensed interior designer.

20 SECTION 2. This act shall become effective November 1, 2025.

21 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
22 March 6, 2025 - DO PASS
23
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